

24STCV29543 24STCV29543

County: los-angeles

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV29543

GOHAR

KHACHATRYAN, et al. vs BMW OF NORTH AMERICA, LLC, et al.

July

28, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFFS' MOTION TO COMPEL DEPOSITION OF PERSON(S) MOST KNOWLEDGEABLE AT
DEFENDANT BMW OF NORTH AMERICA, LLC, AND FOR MONETARY SANCTIONS.

RULING:

The Court grants the Motion
as to the request to compel and denies it as to sanctions.

Commencing at 10:00 a.m.,
on September 1, 2026, Person(s) Most Knowledgeable of Defendant BMW OF NORTH
AMERICA, LLC shall attend a deposition by remote electronic means. (E.g., Cal.
Rules of Court, rule 3.1010; Code Civ. Proc., § 2025.310). The deposition shall
proceed in accordance with the deposition notice evidenced with the Motion,
except as modified hereby.

I.

BACKGROUND

On November 12, 2024, GOHAR
KHACHATRYAN and KRISTINE OHANYAN (Plaintiffs) filed a Lemon Law Complaint
against BMW OF NORTH AMERICA, LLC and FAA BEVERLY HILLS, INC. (Defendants),
alleging Causes of Action for:

1.

FRAUD AND DECEIT

2.

BREACH OF WRITTEN WARRANTY PURSUANT TO THE
MAGNUSON-MOSS WARRANTY ACT

3.

BREACH OF IMPLIED WARRANTY PURSUANT TO THE
MAGNUSON-MOSS WARRANTY ACT

4.

BREACH OF WRITTEN WARRANTY PURSUANT TO THE
SONG-BEVERLY CONSUMER WARRANTY ACT

5.

BREACH OF IMPLIED WARRANTY

6.

PURSUANT TO THE SONG-BEVERLY CONSUMER
WARRANTY ACT

7.

VIOLATION OF BUSINESS & PROFESSIONS
CODE § 17200, ET SEQ.

8.

VIOLATION OF BUSINESS & PROFESSIONS
CODE § 17500, ET SEQ.

9.

NEGLIGENCE

10.

STRICT LIABILITY.

Plaintiff alleges

purchasing, with warranty provisions, a 2022 BMW X6 that Defendant manufactured, which had defects, including engine, braking, and others listed at Complaint paragraph 6. Plaintiff further alleges that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On May 26, 2026,

Plaintiffs filed the Motion to Compel Deposition of Person(s) Most Knowledgeable at Defendant BMW OF NORTH AMERICA, LLC, and for Monetary Sanctions, on grounds including that Defendant was uncooperative in setting a deposition date, missed a noticed deposition, and still has not set a mutually agreeable date.

Defendant opposes, based upon

counterarguments such as that Plaintiffs did not meet and confer in good faith and caused confusion as to the noticed deposition date, eventually resulting in the PMK having a busy scheduling conflict.

II.

LEGAL STANDARD

A

motion lies to compel deposition attendance or document production, after service of a deposition notice, where a deponent fails to appear at, or proceed

with, a deposition, without having served a valid objection under section 2025.410. (Code Civ. Proc., § 2025.450, subd. (a).)

“Code

of Civil Procedure section 2025, subdivision (d)(6), provides that if a deposition notice describes matters on which examination is requested, ‘the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.’” (Maldonado v. Superior Court (2002) 94 Cal.App.4th 1390, 1395-1398.)

Monetary discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

III.

ANALYSIS

According to Plaintiffs, Defendant delayed the PMK deposition over a year, failed to appear at the mutually agreed-upon deposition date, proposed a date for after the discovery cutoff, and generally obstructed Plaintiffs’ taking the deposition.

Defendant disagrees and contends it participated in good faith in scheduling efforts for the exceedingly busy PMK, Plaintiff unilaterally noticed one deposition, and the mutually agreeable deposition date of May 14, 2026 failed because Plaintiff did

not provide timely notice and sent confusing emails.

No meet and confer is

required to compel initial deposition attendance, but instead there must be a declaration showing that moving party inquired about the nonappearance. (Code Civ. Proc., § 2025.450, subd. (b)(2).) "Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance is a requirement that counsel listen to the reasons offered and make a good faith attempt to resolve the issue," including by rescheduling. (*Leko v. Cornerstone Bldg. Inspection Serv.* (2001) 86 Cal.App.4th 1109, 1124. See also Super. Ct. LA County, Local Rules, rule 3.26 ["guidelines adopted by the Los Angeles County Bar Association are adopted as civility in litigation recommendations...."].)

Because the parties have

been unable to agree to a deposition date, the Court will now set a date certain.

As for Plaintiff's

request for sanctions, the Court finds that the Opposition shows substantial justification, such as the PMK's heavy schedule that is credible considering the increasing numbers of Lemon Law cases filed in recent times. Further, it appears that both sides had substantially interacted regarding the deposition date, and the evidence is in direct conflict and could be resolved either way.

IV.

CONCLUSION

The Court grants the Motion

in part, and denies it in part, as specified above.